facts alleged in evidence. But this convenience was overballanced by another very natural and almoſt unavoidable inconvenience; that jurors, coming out of the immediate neighbourhood, would be apt to intermix their prejudices and partialities in the trial of right. And this our law was ſo ſenſible of, that it for a long time has been gradually relinquiſhing this practice; the number of neceſſary hundredors in the whole panel, which in the reign of Edward III were conſtantly *ſix*[s], being in the time of Forteſcue[t] reduced to *four*. Afterwards indeed the ſtatute 35 Hen. VIII. c. 6. reſtored the antient number of *ſix*, but that clauſe was ſoon virtually repealed by ſtatute 27 Eliz. c. 6. which required only *two*. And ſir Edward Coke alſo[u] gives us ſuch a variety of circumſtances, whereby the courts permitted this neceſſary number to be evaded, that it appears they were heartily tired of it. At length, by ſtatute 4 & 5 Ann. c. 16. it was entirely aboliſhed upon all civil actions, except upon penal ſtatutes; and upon thoſe alſo by the 24 Geo. II. c. 18. the jury being now only to come *de corpore comitatus*, from the body of the county at large, and not *de vicineto*, or from the particular neighbourhood. The array by the antient law may alſo be challenged, if an alien be party to the ſuit, and, upon a rule obtained by his motion to the court for a jury *de medietate linguae*, ſuch a one be not returned by the ſheriff, purſuant to the ſtatute 28 Edw. III. c. 18. which enacts, that where either party is an alien born, the jury ſhall be one half aliens and the other denizens, if required, for the more impartial trial. A privilege indulged to ſtrangers in no other country in the world; but which is as antient with us as the time of king Ethelred, in whoſe ſtatute *de monticolis Walliae* (then aliens to the crown of England) *cap.* 3. it is ordained, that "*duodeni legales homines, quorum ſex Walli et ſex Angli erunt, Anglis et Wallis jus dicunto.*" But where both parties are aliens, no partiality is to be preſumed to one more than another; and therefore by the ſtatute 21 Hen. VI. c. 4. the whole jury are then directed to be denizens. And it may be queſtioned, whether the

[s] Gilb. Hiſt C. P. c. 8.
[t] *de Laud. LL. c.* 25.
[u] 1 Inſt. 157.

ſtatute

ſtatute 3 Geo. II. c. 25. (before referred to) hath not in civil cauſes undeſignedly abridged this privilege of foreigners, by the poſitive directions therein given concerning the manner of impanelling jurors, and the perſons to be returned in ſuch panel. So that the court might probably heſitate, eſpecially in the caſe of *ſpecial* juries, how far it has now a power to direct a panel to be returned *de medietate linguae*, and to alter the method preſcribed for ſtriking a ſpecial jury, or balloting for common jurymen.

CHALLENGES to the polls, *in capita*, are exceptions to particular jurors; and ſeem to anſwer the *recuſatio judicis* in the civil and canon laws: by the conſtitutions of which a judge might be refuſed upon any ſuſpicion of partiality [w]. By the laws of England alſo, in the times of Bracton [x] and Fleta [y], a judge might be refuſed for good cauſe; but now the law is otherwiſe, and it is held that judges or juſtices cannot be challenged [z]. For the law will not ſuppoſe a poſſibility of biaſs or favour in a judge, who is already ſworn to adminiſter impartial juſtice, and whoſe authority greatly depends upon that preſumption and idea. And ſhould the fact at any time prove flagrantly ſuch, as the delicacy of the law will not preſume beforehand, there is no doubt but that ſuch miſbehaviour would draw down a heavy cenſure from thoſe, to whom the judge is accountable for his conduct.

BUT challenges to the polls of the jury (who are judges of fact) are reduced to four heads by ſir Edward Coke [a]: *propter honoris reſpectum*; *propter defectum*; *propter affectum*; and *propter delictum*.

1. *Propter honoris reſpectum*; as if a lord of parliament be impanelled on a jury, he may be challenged by either party, or he may challenge himſelf.

[w] *Cod.* 3. 1. 16. *Decretal. l.* 2. *t.* 28. *c.* 36.
[x] *l.* 5. *c.* 15.
[y] *l.* 6. *c.* 37.
[z] Co. Litt. 294.
[a] 1 Inſt. 156.

2. *Propter defectum*; as if a juryman be an alien born, this is defect of birth; if he be a ſlave or bondman, this is defect of liberty, and he cannot be *liber et legalis homo*. Under the word *homo* alſo, though a name common to both ſexes, the female is however excluded, *propter defectum ſexus:* except when a widow feigns herſelf with child, in order to exclude the next heir, and a ſuppoſitious birth is ſuſpected to be intended; then upon the writ *de ventre inſpiciendo*, a jury of women is to be impanelled to try the queſtion, whether with child, or not[b]. But the principal deficiency is defect of eſtate, ſufficient to qualify him to be a juror. This depends upon a variety of ſtatutes. And, firſt, by the ſtatute Weſtm. 2. 13 Edw. I. c. 38. none ſhall paſs on juries in aſſiſes within the county, but ſuch as may diſpend 20*s.* by the year at the leaſt; which is encreaſed to 40*s.* by the ſtatute 21 Edw. I. ſt. 1. and 2 Hen. V. ſt. 2. c. 3. This was doubled by the ſtatute 27 Eliz. c. 6. which requires in every ſuch caſe the jurors to have eſtate of freehold to the yearly value of 4*l.* at the leaſt. But, the value of money at that time decreaſing very conſiderably, this qualification was raiſed by the ſtatute 16 & 17 Car. II. c. 3. to 20*l.* *per annum*, which being only a temporary act, for three years, was ſuffered to expire without renewal, to the great debaſement of juries. However by the ſtatute 4 & 5 W. & M. c. 24. it was again raiſed to 10*l.* *per annum* in England and 6*l.* in Wales, of freehold lands *or copyhold*; which is the firſt time that copyholders (as ſuch) were admitted to ſerve upon juries in any of the king's courts, though they had before been admitted to ſerve in ſome of the ſheriff's courts, by ſtatutes 1 Ric. III. c. 4. and 9 Hen. VII. c. 13. And, laſtly, by ſtatute 3 Geo. II. c. 25. any leaſeholder for the term of five hundred years abſolute, or for any term determinable upon life or lives, of the clear yearly value of 20*l.* *per annum* over and above the rent reſerved, is qualified to ſerve upon juries. When the jury is *de medietate linguae*, that is, one moiety of the Engliſh tongue or nation, and the other of any foreign one, no want

[b] Cro. Eliz. 566.

of